

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: May 28, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ON COMPLAINANT’S MOTION FOR CONFIDENTIAL TREATMENT

This matter came on for consideration of Complainant’s Motion for Confidential Treatment of Designated Information Contained in Complainant’s Opening Brief and Appendix filed May 26, 2026 (Dkt. 55). For the reasons set forth more fully below, Complainant’s motion is **DENIED** on the ground that the requirements of the 46 C.F.R. § 505.5(b) and the Initial Order have not been satisfied.

A. Complainant’s Motion

Complainant’s motion seeks confidential treatment of the highlighted portions of its Initial Brief, Appendix, and Proposed Findings of Fact (“PFF”) pursuant to 46 C.F.R. § 505.5(b). In support of this relief, Complainant states:

At this time, Complainant does not believe that any of the information that it has included in the subject filings constitutes “a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii),” 46 C.F.R. § 502.5(b); however, out of an abundance of caution, Complainant has (1) highlighted in its opening brief and proposed findings of fact direct quotes from documents that Respondent has designed [sic] as confidential pursuant to the Protective Order, and (2) marked with red boxes and otherwise denoted the documents in the appendix that Respondent has designated as confidential pursuant to the Protective Order.

B. Legal Framework

1. Rule 502.5

46 C.F.R. § 502.5 states in pertinent part:

(b) Motion for confidential treatment. If confidentiality is sought for a filing containing information not previously designated as confidential by the Commission or presiding officer, the confidential filing must be accompanied by

a motion justifying confidential treatment. This motion must identify the specific information in a document for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii). The burden is on the party that wants to protect the information to show good cause for its protection. A motion is not required for information, including personal privacy and financial account numbers, redacted pursuant to § 502.13, Privacy protection for filings made with the Commission.

(c) Use of confidential information. Confidential treatment afforded by this section is subject to the proviso that any information designated as confidential may be used by the administrative law judge or the Commission if deemed necessary to a decision in the proceeding. [Rule 5.]

2. Initial Order

The Initial Order served May 15, 2024 (Dkt. 5), contains instructions that the parties must follow throughout the course of the proceeding. With respect to confidential material, the order sets forth separate rules that are applicable to the designation of confidential material for use in discovery and for use in a proceeding.

With respect to use in discovery, ¶ 20 of the Initial Order provides:

Stipulation – The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.

With respect to use in a proceeding, ¶ 21 of the Initial Order provides:

Use in the proceeding – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

With respect to the marking of confidential material, ¶ 24 provides:

Marking confidential material – In the confidential version, the confidential information must be conspicuously and clearly marked on each page, for example by outlining, highlighting, boxes, or braces. The public version must clearly indicate any omissions, for example with blackout or braces. *Pagination and depiction of text on each page must be identical to that of the confidential version.* For example, the confidential filing may read: “On January 1, 2010, Complainant

entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.” Only confidential numbers or words should be marked as confidential in the confidential version and thus redacted in the public version, not entire sentences. Improperly marked filings may be rejected.

With respect to the Confidential Bates Table, ¶ 27 includes the following example:

<i>Bates Range</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
CX 12-13	Depo. Transcript of [Name]	Material indicated	Current pricing data
RX 8-9	Agreement dated [dd/mm/yy]	Entire page range	Commercially sensitive rates and terms

C. Discussion

The motion for confidential treatment is deficient because it does not satisfy the higher standard applicable for use in a proceeding, but rather seeks a continuation of the lower standard applicable in discovery. The motion fails to identify “the specific information in a document for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii)” as required by 46 C.F.R. § 502.5. Rather, Complainant admits that it does not believe that any of the information for which confidential treatment is sought constitutes “a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii),” 46 C.F.R. § 502.5(b). Rather, Complainant states that it filed the motion in an abundance of caution due to the fact that the relevant information is governed by the Protective Order agreed to by the parties and was designated as confidential by Respondent pursuant to the Protective Order.

The Order Entering Protective Order served February 7, 2024, provides that the protective order agreed to by the parties is reasonable despite that it may cover material that would not be entitled to confidential treatment under the Commission’s rules. (Dkt. 21.) It also expressly provides that access to the covered documents is not otherwise limited.

Although a general designation of confidentiality may be sufficient to support a stipulation between the parties for purposes of discovery, it is not sufficient to meet the higher standard applicable to use in a proceeding, which requires a party to “show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1).”

Complainant’s motion for confidential treatment fails to establish good cause under this standard. Complainant’s over-designation of confidential material in its submissions negatively impacts my ability to make factual findings necessary to render a decision in this proceeding that is cognizable to the parties and to the public at large. Requiring surgical precision when asserting confidential treatment for use in a proceeding is necessary to ensure my ability to render a decision. It will also narrow the universe of confidential material to be used in this proceeding and thereby reduce the need for me to use confidential information when deemed necessary to render a decision pursuant to 46 C.F.R. § 502.5(c).

D. Order

It is **ORDERED** that Complainant’s motion for confidential treatment is **DENIED**; It is

FURTHER ORDERED that Complainant shall resubmit the confidential versions of its Initial Brief, Appendix, and Proposed Findings of Fact, no later than **June 10, 2026**. It is

FURTHER ORDERED that Complainant shall file public versions of its Initial Brief, Appendix, and Proposed Findings of Fact no later than **June 10, 2026**.

MARY A. HERVEY -S

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Date: 2026.05.28 09:12:51 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge